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EDUCATIONAL ASSESSMENT AND EXAMINATIONS SERVICE (EAES)  
A NATIONAL EXIT EXAMINATION PREPARED FOR STUDENTS OF  
ETHIOPIAN LAW SCHOOLS  
ACADEMIC YEAR 2021/2022

June 29, 2022

Time Allowed : 3:00 Hours

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**PART II: PUBLIC LAWS**

**INSTRUCTIONS:**

1. ATTEMPT ALL QUESTIONS ON THE BASIS OF SPECIFIC INSTRUCTIONS INDICATED IN EACH SECTION.
2. LAWS THAT CAN BE BROUGHT TO THE EXAM ROOM ARE THE UN CHARTER, THE VIENNA CONVENTION ON THE LAW OF TREATIES, THE FDRE CONSTITUTION, THE CRIMINAL CODE, THE INCOME TAX PROCLAMATIONS THE VAT PROCLAMATION, THE ENVIRONMENTAL POLLUTION CONTROL PROCLAMATION, AND THE EIA PROCLAMATION.
3. WHENEVER APPROPRIATE, BUTTRESS YOUR ARGUMENTS WITH PERTINENT LEGAL PROVISIONS.
4. PUT YOUR ANSWERS IN A SEPARATE ANSWER SHEET ATTACHED TO THE EXAM.

**DO NOT TURN THIS PAGE UNTIL YOU ARE ALLOWED TO DO SO**

**SECTION I. MULTIPLE CHOICES (30 MARKS)**

**CHOOSE THE BEST ANSWER FOR EACH QUESTION FROM THE ALTERNATIVES GIVEN.**

1. Which one of the following is NOT vital to secure legitimacy of constitution-making process?
  - A. Participation of persons who are aware of the role they play in the formulation of the constitution.
  - B. Broad-based and accommodative consultation with different segments of the society.
  - C. Deliberate empowerment of the civil society in articulation of aspirations and visions of the society.
  - D. The process must be open and transparent throughout the process of constitution making.
  - ☒ E. Engaging citizens with due consideration of expert disregarding the laymen.
  
2. Which one of the following alternatives does not fall in the elements of rule of law?
  - A. The people must be ruled by the law.
  - B. The law should be supreme.
  - ☒ C. The law should be retrospective.
  - D. The law should be efficient.
  - E. Courts should deliver impartial justice.

3. Which one of the following is true about the House of the Federation in Ethiopia? *C Not*
- ☒ A. The House of the Federation is the ultimate decision-maker in constitutional interpretation. ✓
  - B. The House of the Federation is a second chamber which has the power of legislation. ✗
  - C. The members of the House of the Federation are elected every five years through universal suffrage. ✗
  - D. The House of the Federation is a judicial organ empowered to settle a dispute among regions. ✗
  - E. The House of the Federation represents the will of Ethiopian citizens.
4. An interpretation based on an innate sense of justice regardless of what the written law might provide is called:
- ☒ A. Doctrinal Interpretation.
  - B. Prudential Interpretation.
  - C. Textual Interpretation.
  - ☒ D. Equitable Interpretation.
  - E. Natural Interpretation.
5. Identify a statement that best distinguishes a federal form of government from a decentralized unitary state.
- A. The federal government and the constituent units can act directly on citizens.
  - B. The constituent units have no constitutional base.
  - C. The final decision on some matters, such as defense, lies on the constituent units.
  - D. The constituent units are coequal with the central government in most respects.
  - ☒ E. The sources of power for each level of government emanates from a constitution.

6. Cooperative federalism is criticized by many because \_\_\_\_\_.
- A. It does not give equal prerogative to all members of the federation.
  - B. It gives each level of government power to control its respective executive organ.
  - ☒ C. It results in the establishment of a unitary system in the end.
  - D. It results in a democratic deficit by blurring accountability.
  - ☒ E. It affects the federal process since it makes the center stronger than the states.
7. Identify the correct match based on the **FDRE** Constitution.
- A. National Defense-Concurrent Power.
  - ☒ B. Commercial Code-Exclusive Federal Power.
  - C. Penal Code-Shared Power.
  - D. Land Law Administration-Exclusive State Power.
  - E. Monetary Policy-Framework Power
8. The undesignated power of taxation included in the FDRE Constitution implies that \_\_\_\_\_.
- ☒ A. The two houses joint session determine which level of government can exercise the power of taxation.
  - B. The two houses jointly determine the base and rates of the newly identified tax.
  - C. The two houses jointly determine how the proceeds obtained from such power is divided between the levels of government.
  - D. It is viewed under the residual powers of the states. ✗
  - E. The states determine the tax base and rate to a newly identified tax. ✗

9. Which of the following is **true** about inadvertent negligence?
- A. The accused does not foresee the harm as certainty but only as possibility.
  - B. The accused does not intend to commit the crime but accepts its consequences. ✗
  - C. An accused acting by imprudence.
  - ☒ D. Acting by a criminal lack of foresight.
  - E. The accused is aware that his act may cause harm but he disregards this consequence. ✗
10. Which of the following acts constitute a justifiable act?
- ☒ A. Necessity.
  - B. Disciplinary measures.
  - C. Acts in respect of Military duties.
  - D. Professional duties.
  - E. Acts done to secure lawfully recognized private rights.
11. Which of the following is a role of a medical expert in the determination of a criminal liability?
- A. Advising the court on the extent of the criminal punishment against the accused.
  - B. Investigating the extent of the accused's criminal responsibility and possible punishment.
  - C. Analyzing the medical results with pertinent provision of the criminal law.
  - D. Advising the court on the types of curative or protective measures that should be taken.
  - ☒ E. Identifying the perpetrator of a crime and the extent of harm inflicted against the victim.

12. One of the following is different from the others.
- ☒ A. Public Apology.
  - ☐ B. Fine.
  - ☐ C. Imprisonment.
  - ☐ D. Capital punishment.
  - ☐ E. Confiscation and sequestration.
13. When the accused is unable to pursue his criminal activity to the end due to external factors, the stage in the commission of the crime is known as \_\_\_\_\_.
- ☐ A. Complete Attempt.
  - ☐ B. Impossible attempt.
  - ☐ C. Preparation.
  - ☒ D. Incomplete attempt.
  - ☐ E. Active Repentance.
14. Which of the following is a more appropriate criminal measure that may be imposed on young offenders?
- ☐ A. Fine.
  - ☒ B. Admission to corrective centers.
  - ☐ C. Simple imprisonment.
  - ☐ D. Rigorous impressment.
  - ☐ E. Compulsory labor.
15. Which one of the following types of income is **NOT** encompassed in taxable income?
- ☐ A. Income from smuggling activity.
  - ☒ B. Casual income.
  - ☐ C. Capital Receipt, except gains on transfer of capital asset. ✓
  - ☐ D. Income received in kind. ✗
  - ☐ E. Fees for services rendered. ✗

16. Who is the actual payer of Value Added Tax in Ethiopia?
- ☒ A. Consumers of the goods and services.
  - B. Seller who is registered for VAT.
  - C. Retailers registered for VAT.
  - D. Whole seller registered for VAT.
  - E. Both retailers and whole sellers.
17. Which one of the following types of tax is an additional tax rate added onto the rate of an existing tax?
- A. Excise tax.
  - B. Surtax.
  - C. Surplus tax.
  - ☒ D. Turnover tax. — cases
  - E. Value added tax.
18. Any compensation received or receivable by a victim of northern Ethiopia civil war destruction is:
- ☒ A. Fully exempt from tax.
  - B. Taxable.
  - C. Exempt up to 15 % of ETB.
  - ☒ D. Exempt except to the extent of amount received or receivable which has been allowed as deduction for any loss damage caused by such destruction.
  - E. Deductible and subject to taxable.
19. Which of the following is correct about Ethiopian tax jurisdiction?
- A. Foreigners are required to pay tax from incomes they generate elsewhere.
  - B. Residents are required to pay income tax from incomes they receive in Ethiopia only.
  - C. Non-residents are required to pay tax from their worldwide income.
  - ☒ D. Residents of Ethiopia pay tax with respect to worldwide income.
  - E. All Ethiopians are required to pay tax to Ethiopian government wherever they reside.

20. Which one of the following taxation canons suggests relatively small cost of tax administration against the tax revenue to be collected?
- A. Horizontal equity.
  - ☒ B. Efficiency.
  - C. Certainty.
  - D. Simplicity.
  - E. Convenience.
21. Which one of the following best expresses customary international law?
- A. Customary international laws have emerged by mere fact of repetition of states acts.
  - B. For proof of the existence of a given custom, the burden of proof lies on the International Court of Justice.
  - ☒ C. Customary international laws emerge by consistent state practice accepted as a law.
  - D. Individual States official ceremonies can constitute customary international law.
  - E. Official activities of comity and courtesy can constitute customary international law.
22. If a permanent member of the SC is absent or abstains during voting in the Security Council resolution, what does such absence or abstention imply?
- A. That state is rejecting the passing of the resolution.
  - B. That state is concurring with the passing of the resolution.
  - ☒ C. That state is accepting the resolution with reservation.
  - D. That state is striking the agenda from the list of issues to be considered.
  - E. That state is delaying the voting on the issue presented for discussion and approval.

23. Which one of the following is true about International Court of justice (ICJ)?
- A. ICJ has the jurisdiction to entertain all cases presented by member states of the UN.
  - B. ICJ can automatically assume jurisdiction without the requirement of determining the consent of the disputing states.
  - C. ICJ can entertain cases presented from non-members of the United Nations automatically.
  - ☒ D. ICJ can give advisory opinion if requested by organs of United Nations provided that the issue is under their competence.
  - E. ICJ can entertain cases presented from all international organizations.
24. Which one of the following can be a subsidiary source of international human rights law?
- A. International Human Rights Treaties.
  - B. Customary International Law.
  - ☒ C. Judicial Decisions.
  - D. General Principles of Law.
  - E. Convention on the Rights of the Child.
25. Which one of the following regional systems of human rights protection is relatively least developed one?
- A. The African Human Rights System.
  - B. The European Human Rights System.
  - C. The Inter-American Human Rights System.
  - ☒ D. The Arab Human Rights System
  - E. The UN Human Rights System.
26. The set of rights that provide conditions necessary for the wellbeing and prosperity of individuals are referred to as:
- ☒ A. Civil Rights.
  - B. Political Rights.
  - C. Economic and Social Rights.
  - D. Cultural Rights.
  - E. Due Process Rights.

27. Which one of the following rights is considered to be absolute?
- A. The right to life.
  - B. Freedom of expression.
  - C. The right to property.
  - D. The right to liberty.
  - ☒ E. Freedom from slavery.
28. Which of the following multilateral environmental agreement seeks to protect wetlands of international importance?
- A. ~~Basel Convention.~~
  - B. ~~Ramsar Convention.~~
  - ☒ C. Bamako Convention.
  - D. Rotterdam Convention.
  - E. Vienna Convention.
29. Which of the following is an economic instrument that can be used to ensure environmental Protection?
- ☒ A. Environmental impact assessment.
  - B. Carbon taxation.
  - C. Licensing requirement.
  - D. Trade restrictions.
  - E. Product standard.
30. Which stage of EIA determines whether a proposed project requires EIA or not?
- ☒ A. Decision making.
  - B. Scoping.
  - C. Screening.
  - D. Mitigation and impact management.
  - E. Implementation and follow-up.

**SECTION II. MATCHING (10 MARKS)**

**CHOOSE THE BEST MATCH FOR THE ITEMS UNDER 'A' FROM THE ITEMS UNDER 'B'.**

**A**

1. First Past the Post System **D**
2. Supremacy clause **E**
3. Mostly federal exclusive power **J**
4. Corruption **N**
5. Moral offender **G**
6. Income or profit from the sale of capital assets **L**
7. Economic circumstance of taxpayers **B**
8. Third generation rights **K**
9. World Human Rights Day **M**
10. Protecting the environment for human's sake **O**

**B**

- A. Mixed Electoral System
- B. Ability to pay
- C. Anthropocentrism
- D. Winner-Takes-All
- E. Federal law prevails over states
- F. Deductible item
- G. Master minded offender
- H. Socio-economic right
- I. UN's Establishment Day
- J. Foreign relations
- K. Solidarity rights
- L. Capital gains
- M. December 10
- N. Special crime
- O. Eco-centrism
- P. Ordinary crime

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**SECTION III: GIVE SHORT ANSWERS QUESTIONS (10 MARKS)**  
**GIVE SHORT ANSWERS TO THE FOLLOWING QUESTIONS.**

1. Mention at least two areas of power sharing through Consociation. (5 MARKS)  
*- Division of Power      Supremacy of E, with*
2. Mention at least two distinct features of the Ethiopian federation. (5 MARKS)

*The preamble of E P star*

**SECTION IV: ESSAY PART (20 MARKS)**

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not un com      Sule*

1. Write a short essay of not more than 20 lines discussing the reasons why preparatory acts are, in principle, not punishable both in Ethiopia and elsewhere. (10 MARKS)
2. Cultural relativism asserts that human values, far from being universal, vary in great deal according to different cultural perspectives. However, when taken to its extreme, cultural relativism poses great deal of dangers to human rights. Write a short of essay of not more than 20 lines explaining what these dangers are. (10 MARKS)

*Essay*

*1 - preparatory acts are not punishable under criminal code  
 Art 26 CD due to the preparatory introduction is not  
 clearly know. 2<sup>nd</sup> if the preptor punish is  
 preparatory state it increase the <sup>Commission</sup> participation of offender  
 to commit the crime.*

*② cultural relativism abuse human right unlike it depend on  
 the culture of the society. it is affect to protect  
 human right violation such as violation of right  
 to education, early marriage, violation of human honor and  
 reputation and so on.  
 - it challenge to apply international human right instrument  
 but such as UDHR, ICER, ICESCR.*

20

## SECTION V. HYPOTHETICAL CASES (30 MARKS)

READ THE FOLLOWING CASES VERY CAREFULLY AND ANSWER THE QUESTIONS THAT FOLLOW.

### Case I (15 MARKS)

~~treaties~~ → one part

20

For the last two years, about twenty states have been negotiating a treaty on what they considered to be the most sensitive national security issue to all of them. In the process, a lot of debates have taken place which, luckily, led to the settlement of many controversial issues. However, the states have not yet been able to agree on one particular issue due to state AB's adamant objection to its inclusion in the treaty. Indeed, repeated efforts were made by many to convince state AB to agree to the inclusion of the issue in the treaty but to no avail. Consequently, some states suggested that state AB should be removed from the negotiation since, in its presence, the treaty could not cover all the issues they want to be covered. Moreover, states that have suggested AB's removal from the negotiation (treaty) argue that the subject-matter state AB is objecting to is fundamental to the treaty. Yet, there are many other negotiating states which argue that the issue (subject-matter) state AB is objecting to is not as such fundamental to the treaty and, hence, state AB can enter a reservation and stay in the treaty. Indeed, in the interest of remaining in the treaty, state AB is willing to align itself with this position and enter a reservation to move forward with the other states. However, those states which support AB's exclusion still think that state AB cannot enter a reservation as what it is objecting to is fundamental to the treaty and reservation relating to such fundamental matter would not be compatible with the object and purpose of the treaty itself. Now, it is clear that the remaining 19 states are divided into two blocs on whether or not reservation on what state AB refuses to accept is compatible with the object and purpose of a treaty.

If you are approached by two of those states to advise them on who should determine the compatibility of a given reservation with the object and purpose of a treaty, what would you tell them?

Have Conclusion on the law of  
treaties  
reservation is not allowed  
if affect purpose and  
object of  
the treaty

## Case II (15 MARKS)

Suppose 'Y' is a small city in Ethiopia conventionally classified into North and South to connote the rich and slum-dwellers, respectively. Unjustly, all of the solid waste disposal sites owned by private Landfill Company (named Company "C") are located in the southern part of the city, causing different health problems to the poorer sections of the community besides the damage caused to the environment. Cognizant of this fact, Ato "X", who is an environmental lawyer, living in the Northern part of the city repeatedly requested the concerned environmental protection agency to take action against Company "C" to force it to take necessary rectification measures including the closure of the landfill site. However, the environmental protection agency argued that the issue is not the concern of individuals coming from the North part of the city like Ato "X". Thus, the agency stated that it would not look into the requests of Ato "X", who is not from the affected section of the community, until he brings a certificate of representation from the community in the south. Disappointed by the position of the Agency, Ato "X" wants to initiate a court action against Company "C" and the environmental protection agency.

Based on the above facts of the case, try to respond to the following questions.

- A) Which type of environmental principle has been infringed due to the concentration of the landfills in the Southern part of the city? (5MARKS)
- B) Do you think the argument of the Agency regarding the right of Ato "X" to request it to take action against Company "C" is tenable under Ethiopian environmental laws? (5MARKS) Yes ~~At 11~~ no b/c every individual has right to
- C) Does Ato "X" have a standing right to sue the Agency under Ethiopian environmental law? (5MARKS) YES ~~At 11~~ of Environmental Pollution Control Proclamation

Every individual has right to  
**THE END** Claim for 2nd environment damage

env: action for people's right

**EDUCATIONAL ASSESSMENT AND EXAMINATIONS  
SERVICE (EAES)**

**NATIONAL EXIT EXAM FOR LL.B PROGRAMME  
STUDENTS OF ETHIOPIAN LAW SCHOOLS**

**2021/2022 ACADEMIC YEAR**

**JUNE 28, 2022**

**TIME ALLOWED: 3 Hours**

**PART I: PRIVATE LAWS**

**INSTRUCTIONS:**

1. THIS EXAM HAS FIVE SECTIONS: ATTEMPT EACH SECTION ON THE BASIS OF SPECIFIC INSTRUCTIONS INDICATED IN EACH SECTION.
2. THIS IS A CLOSED BOOK EXAM EXCEPT FOR PERTINENT ETHIOPIAN LAWS.
3. BUTTRESS YOUR ARGUMENTS WITH PERTINENT LEGAL PROVISIONS WHENEVER APPROPRIATE.
4. PUT YOUR ANSWERS IN A SEPARATE ANSWER SHEET ATTACHED TO THE EXAM.
5. YOU MAY ASSUME FACTS WHERE NECESSARY.
6. WRITE LEGIBLY.
7. SWITCH OFF YOUR MOBILE PHONE.

**DO NOT TURN THIS PAGE UNTIL YOU ARE ALLOWED TO DO SO.**

**SECTION I: MULTIPLE CHOICE ITEMS (30 MARKS)**

**CHOOSE THE BEST ANSWER FROM THE GIVEN CHOICES AND WRITE THE LETTER OF YOUR CHOICE ON THE ANSWER SHEET PROVIDED**

1. Contractual obligation is distinguished from criminal obligation in that:
  - A. Contractual obligation implies the existence of an obligee and obligor.
  - B. Violation of contractual obligation imposes obligation of a monetary value.
  - ☒ C. Contractual obligation has no implication on public interest and is solely an issue and concern of private interest alone.
  - D. Court plays active role in the enforcement of contractual obligation.
  - E. Contractual obligation may be used as a means to enforce moral values.
  
2. Object of a contract under Article 1678(b) refers to:
  - A. The economic gain that the parties expect to get from a contract.
  - ☒ B. The obligations of both parties to a contract which is the subject matter of the contract.
  - C. The motives of both parties or at least one of the parties to a contract.
  - D. The subject matter of a contract.
  - E. The ultimate utility of the contract to the general public.
  
3. Which of the following statement is contrary to the law of interpretation of contracts?
  - A. A general term in a contract shall be given narrower meaning. ✗
  - B. Good faith and common intention of the parties justify departure from clear terms of the contract. ✓
  - C. Article 1739 is a further elaboration of Article 1738. ✗
  - ☒ D. Ambiguous terms of a contract shall be given the meaning commonly intended by both parties. ✓
  - ☒ E. Court may complement the terms of the contract by interpretation. ✗

4. One of the following is NOT specific performance under Ethiopian contract law.
- A. Court orders police to force the debtor to deliver a specified thing to the creditor.
  - ☒ B. Court authorizes the creditor to declare unilateral cancellation of a contract.
  - C. Court gives power of agency to the creditor to represent the debtor on the matter specified as obligation of the debtor on the contract.
  - D. Court authorizes the debtor to deposit a thing that he is bound to deliver to the creditor at the risk and expense of the creditor in a public warehouse.
  - E. Court gives power of agency to the debtor to sell perishable goods on behalf and by the name of the creditor.
5. A contract that provides an alternative debtor for the person who claims as per Articles 1940, 194 and 1942 is a contract of:
- ☒ A. Counter-guarantee.
  - B. Secondary guarantee.
  - C. Subrogation.
  - D. Delegation.
  - E. Assignment.
6. One of the following statements is NOT true about the nature of marriage?
- A. All types of marriage shall satisfy the same validity requirements.
  - B. All types of marriage shall be registered before competent officer of civil status.
  - C. All types of marriage produce similar legal consequences.
  - ☒ D. All types of marriage follow the same celebration formality.
  - E. All types of marriage dissolve following similar grounds of dissolution.

7. According to the Revised Family Code, marriage shall produce effect from:
- A. Time of registration of marriage.
  - ☒ B. Time of celebration of marriage.
  - C. Time of betrothal of marriage.
  - D. Time of issuance of certificate of marriage.
  - E. Time of consummation.
8. In the absence of contract of marriage or where the contract of marriage is invalid under the Law, one of the following is a common property.
- A. The property which the spouses possess on the day of their marriage.
  - B. The property which a spouse acquires by succession after marriage. ✗
  - ☒ C. All property acquired by a spouse during marriage by onerous title.
  - D. The property which a spouse acquires by donation after their marriage. ✗
  - E. The property which the spouses possess before the day of their marriage. ✗
9. As a matter of rule, one of the statements is true about administration of personal property.
- A. The spouses shall jointly administer their respective personal property.
  - B. Each of the spouses shall freely dispose his/her personal property.
  - C. Each of the spouses shall freely dispose the personal property of the other spouse. ✗
  - D. Each of the spouses shall freely administer the personal property of the other spouse. ✗
  - ☒ E. Each of the spouses shall freely collect income from the personal property the other spouse. ✓
10. A spouse can do one of the following transactions without the agreement of the other spouse.
- A. Renting out a commonly owned house. ✗
  - B. Exchanging a commonly owned chair which has a value of Birr 600. ✗
  - C. Giving a birthday gift which has a value Birr 300. ✗
  - ☒ D. Borrowing Birr 400 from another person. ✓
  - E. Lending Birr 500 to another person. ●

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11. A husband may **NOT** be presumed to be the father of a child:
- A. If the child is born more than 180 days after the conclusion of the marriage. ✗
  - B. If the child is born within 300 days after the dissolution of marriage. ✗
  - ☒ C. If the child is born 300 days after the court declared the absence of the husband.
  - D. If the child is born within 180 days after the conclusion of marriage. ✗
  - E. If the child is born within 180 days after the dissolution of marriage. ✗
- C
12. One of the following is **NOT** true about the obligation to supply maintenance.
- A. An obligation to supply maintenance exists between ascendants and descendants.
  - B. An obligation to supply maintenance exists between persons related by affinity in direct line. ✓
  - ☒ C. An obligation to supply maintenance does not exist between brothers and sisters. •
  - D. An obligation to supply maintenance subsists between a man and great grandparents.
  - E. An obligation to supply maintenance exists between the adopter and an adopted child.
13. Who will be the guardian or tutor of a child who used to live with his mother that has passed away?
- ☒ A. The father of the child.
  - B. The ascendants of the child.
  - C. The brothers or sisters of the child.
  - D. The aunt or uncle of the child.
  - E. Any relative who best serves the interest of the child.

14. One of the following shall NOT be grounds of dissolution of private limited company.
- A. Declaration of dissolution by the court for good cause.
  - B. Dissolution at the request of any member where the term of the company has been fixed.
  - C. Expansion of the company across states.
  - D. Bankruptcy or insolvency of a member.
  - E. If the capital of the PLC falls below the minimum amount fixed statutorily.

15. One of the following is NOT the features of joint venture under the commercial code of Ethiopia.
- A. The joint venture should not be known to third parties.
  - B. There are no formality requirements for the validity of a joint venture formation.
  - C. There is no registration or no publicity.
  - D. Acquiring legal personality before starting the business is a requirement in joint venture.
  - E. No name of its own; partners deal with third parties in their own names.

16. Among the following alternatives, which one is a characteristic of patrimony?
- A. A patrimony is vested on privileged persons. ✗
  - B. Patrimony is attached to its holder. ✓
  - C. Only capable persons have a patrimony. ✗
  - D. A person can have more than one patrimony. ✗
  - E. Patrimony can exist without a person to be a holder. ✓

17. Which one of the following alternatives is among the characteristics of ownership?
- A. It is a narrow right. ✗
  - B. It is a specific right. ✗
  - C. It is a bundle of rights. ✓
  - D. It is not an absolute right. ✗
  - E. It is the subset of other rights. ✗

18. Which one of the following alternatives is true about protection of possession through use of force?
- A. Circumstances do not matter to use force.
  - B. The possessor should use force before any legal action. ✗
  - C. Force can be used any time until the period for legal action is barred.
  - D. Any means or method can be used while using force. ✗
  - E. The possessor or the holder should use a reasonable force. ✓
19. Among the following, one is a mandatory requirement to acquire ownership via possession in good faith.
- A. There should be a contractual agreement that could be gratuitous. ✗
  - B. The purchaser should buy a corporeal movable thing from its owner. ✗
  - C. The purchaser should purchase the thing from a person who has a valid title. ✗
  - D. The buyer should purchase the thing from a person who has no valid title. ✓
  - E. The thing to be acquired could be either an ordinary or a special movable.
20. From the following alternatives one is an illegitimate cause of transferring and acquiring ordinary corporeal chattels.
- A. Delivery of the thing itself by the transferor to the transferee. ✗
  - B. Delivery of the document representing the thing to be transferred. ✗
  - C. Snatching of a good and lapse of a period of limitation for legal action. ✓
  - D. Transfer and acquisition of perfect ownership right over the thing. ✗
  - E. Transfer and acquisition of rights of usufruct over the thing to be possessed.
21. Among the following alternatives which one is the characteristic of servitude under the Ethiopian property law?
- A. It is a right in-personam. ✗
  - B. It is a personal right. ✗
  - C. It could exist in relation to one plot of land. ✗
  - D. It could exist in relation to a land owned by one person. ✗
  - E. It is a right in rem. ✓

22. One of the following alternatives is true about expropriation of private properties.
- A. It is the power of the sovereign that could be delegated.
  - B. It requires the consent of the owner of a private property. ✗
  - ☒ C. Properties are expropriated in the interest of the public at large. ✓
  - D. An owner who has opposed an expropriation is not entitled for ✗ compensation.
  - E. Properties might be expropriated for the interest of private investors. ✗
23. What could be the possible cause for the departure from the rule of equivalence in extra-contractual claims?
- A. Lack of sufficient evidence proving the exact amount of damage. ✗
  - B. Victim's/claimant's innocence. ✗
  - ☒ C. Victim's contribution to the materialization of damage. ✓
  - D. Wrongful acts committed without a superior order.
  - E. When a person causes an intentional damage the consequence of which expanded beyond what is reasonably expected. ✗
24. Which of the following is NOT a source of extra-contractual liability?
- A. Fault.
  - B. Activities one engages in or things possessed by a person.
  - C. Where a third party for whom a person is responsible incurs liability.
  - ☒ D. Crime.
  - E. Unlawful termination of a worker's contract of employment.
25. Which of the following is NOT the possible rationale for holding a person liable for the wrongful conducts of another?
- A. Control test.
  - B. Analogy with causation.
  - ☒ C. Abuse of power.
  - D. Deep pockets.
  - E. Economic and moral consideration.

26. Which of the following is **NOT** qualified to claim maintenance of a person /victim of mortal accident under our Civil Code of Ethiopia?
- A. Deceased person's son.
  - B. Deceased person's daughter.
  - ☒ C. Deceased person's brother.
  - D. Deceased person's father.
  - E. Deceased person's wife.
27. Which of the following is **NOT** a remedy under the law of extra-contractual liability?
- A. Monetary compensation for economic loss.
  - B. Restitution.
  - C. Remedial publication.
  - ☒ D. Forced performance.
  - E. Monetary compensation for moral damage.
28. A passenger who sustains bodily injury while travelling by the defendant's car for free can claim compensation only if he/she proves that:
- A. The car has no third party insurance coverage.
  - ☒ B. A driver/owner is at fault. ✓
  - C. He/she has committed no fault.
  - D. There was unjust enrichment by the owner.
  - E. There was a trespass by a driver.
29. An employee of a construction company (employer) building a library in a public university as a contractor was injured by a collapsing ladder and sustained a serious bodily damage as a result. Who should be held liable to compensate the bodily damage to the employee?
- ☒ A. The university.
  - ☒ B. The employer.
  - C. The employee him/herself.
  - D. The person who manufactured the ladder.
  - E. The university and the employer jointly.

30. Which of the following liabilities under extra-contractual liability law can be contractually limited?

- A. Inflicting bodily injury.
- B. Defamation.
- C. Liability for dangerous activities.
- ☒ D. Trespass.
- E. Injury to the rights of spouses.

## SECTION II: MATCHING ITEMS (10 MARKS)

MATCH THE ITEMS UNDER 'A' WITH THOSE UNDER 'B'

### Column A

1. Suretyship ☒ E ✓
2. The meeting of mind ☒ B ✓
3. The objective appearance of the offer
4. Urban land lease contract ☒ D ✓
5. Interpretation in favor of the debtor ☒ A ✓
- ☒ 6. Court order termination without cause ☒ J ✓
7. Creditor has to prove debtor's fault ☒ I ✓
8. Construed narrowly ☒ F
9. Guiding principle to search intention of parties ☒ M ✓
10. Partial performance possible ☒ E G

### Column B

- A. Administrative contract ☒ \*
- B. Consensus ad idem ☒ X
- C. Laissez-faire
- D. Written form
- E. Simple joint
- F. Gratuitous contract
- G. Divisible
- H. Do one's own best
- I. Joint obligation
- ☒ J. Court can order termination
- ☒ K. Reasonable person's standard
- L. Article 1747
- M. Good Faith



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### SECTION III: SHORT ANSWERS (10 MARKS)

ANSWER THE FOLLOWING QUESTIONS IN NOT MORE THAN 4 LINES

1. Art. 45 (1) of the Revised Family Code prescribes that the spouses shall deposit a copy of contract of marriage in court or with the office of civil status. What is the effect of non-compliance with this requirement particularly with reference to the validity of the contract of marriage? (5 MARKS)
2. List the important preconditions that are necessary to establish a fault based extra-contractual liability (5 MARKS)

→  
pre-  
→  
fault

### SECTION IV: SHORT ESSAYS (20 MARKS)

WRITE SHORT ESSAYS FOR THE FOLLOWING QUESTIONS IN NOT MORE THAN 10 LINES

1. "The purpose of the provisions of the Civil Code that run from Article 1676-1731 is to explain Article 1675." Discuss the validity or otherwise of this statement. (10 MARKS)
2. Discuss the differences and similarities between promise of sale and pre-emption under the Ethiopian property law. (10 MARKS).

### SECTION V: HYPOTHETICAL CASES (30 MARKS)

READ THE FOLLOWING HYPOTHETICAL CASES VERY CAREFULLY AND ANSWER THE QUESTIONS THAT FOLLOW.

#### 1. HYPOTHETICAL CASE I (15 MARKS)

Mr. Belay used to live in Addis Ababa. He had five children; namely, Alemu, Niguse, Markos, Kelemu and Siyum. Mr. Belay was a rich person having four urban buildings in the town where he resided. In his life time, Mr. Belay donated one of his urban dwellings to one of his sons, Alemu. In his donation, Mr. Belay specified that Alemu will only get ownership and possession of the house up on the death of the former. Mr. Belay died intestate. Up on the death of Ato Belay the

reter

children sought the distribution of the property of the deceased equally among themselves including Alemu. Alemu claimed exclusive allotment of the urban building that was donated to him in addition to his share from the rest of the property.

Assuming yourself as a judge presiding over the case, what would be your decision on this issue? Can Alemu be successful in his claim? Why/why not? (15 MARKS)

## 2. HYPOTHETICAL CASE II (15 MARKS)

A businessperson called Bewuketu lives in Addis Ababa. He engages in making leather products. He purchases raw materials and processes the same to produce leather bags, belts etc. He also collects the raw materials from the countryside and stores them in a small warehouse till the resell price of the raw materials increases. However, as he does not have a machine that makes the leather as a finished product, he enters in to an agreement with Zeleke who has the machine and other tools for converting the semi-processed materials in to finished products. Bewuketu usually purchases raw leather from butchers, processes it to a certain stage, and forwards it to Zeleke. One day the officials of the bureau of trade in Addis Ababa region visited Mr. Bewuketu's activity and concluded that Mr. Bewuketu was a trader. They asked him why he did not discharge obligations of traders. Mr. Bewuketu responded that he was not a trader-pointing at article 9 of the Commercial Code.

Based on the given facts answer the following questions:

1. Do you agree with Bewuketu's argument? Why or why not? (8 MARKS)
2. Would it be different if Bewuketu performs the activities independently as a source of his livelihood without storing the raw materials? Why or why not? (7 MARKS)

Alemu.

4 ch  
5  
lifetime

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EDUCATIONAL ASSESSMENT AND EXAMINATIONS  
SERVICE (EAES)

NATIONAL EXIT EXAMINATION FOR  
LL.B PROGRAMME STUDENTS OF ETHIOPIAN LAW  
SCHOOLS

ACADEMIC YEAR 2021/ 2022

JUNE 30, 2022

TIME ALLOWED: 3:00 HOURS

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**PART III: PROCEDURAL LAWS AND SKILLS**

**Instructions:**

- This is a closed book exam for all materials except clean copies of
  - A. the Civil Procedure Code,
  - a) the Criminal Procedure Code
  - b) the Criminal Code,
  - c) the Federal Courts Establishment Proclamation, and
  - d) Corruption Crime Proclamations (substantive and procedural)which cannot be lent to nor borrowed from other students.
- The exam has five sections. The grades allotted for each section are indicated beside the title of the section.
- Whenever appropriate, support your arguments with pertinent legal provisions.
- You are expected to allocate your time based on the marks allotted per question.
- Write your answers in the answer sheet provided.
- Switch off your mobile phones.

**PLEASE DO NOT TURN THIS PAGE UNTIL YOU ARE TOLD TO DO SO!**

## SECTION I: MULTIPLE CHOICE QUESTIONS (30 marks)

CHOOSE THE BEST ANSWER AND WRITE THE LETTER OF YOUR CHOICE ON A SEPARATE ANSWER SHEET APPENDED TO THIS EXAM BOOKLET.

1. Which one of the following is **not** a substantial cause to justify the production of additional evidence during appeal?
  - ☒ A. The evidence was unknown at the trial.
  - B. It could not have been discovered at that time.
  - ☒ C. The evidence is presumed to be believed.
  - D. The evidence would probably have a significant effect on the decision.
  - E. The subordinate court refused to admit evidence.
  
2. Which one of the following is true about the issuance of warrant of arrest against non-appearing witnesses?
  - A. If the defendant may obstruct the execution.
  - B. When the witness may be physically incapable to attend the court.
  - C. When the surety discharges his obligation.
  - ☒ D. If the witness has intentionally avoided service.
  - E. The summons has not been duly served.
  
- ☒ 3. Which one of the following is **incorrect** about procedural irregularity?
  - A. The existence of procedural irregularity by itself will not guarantee the revision of the judgment of the court of rendition.
  - B. The court of rendition can always review its judgment in case of irregularity.
  - C. If irregularity may not affect the decision on the merits, the proceedings will not be set aside.
  - D. If irregularity does not affect the court's decision on the merits, the proceedings will not be set aside.
  - E. Irregularity must substantially affect the decision of the case on the merits.

4. When are leading questions allowed only upon the permission of the court?
- A. When the witness is biased to answer the questions.
  - B. To enable the witness to understand the question easily.
  - C. To an elderly-aged witness.
  - ☒ D. When the witness fails to remember the facts fully.
  - E. It can be used during examination-in-chief.
5. Which one of the following is the best reason to review the previous judgment of the trial in a civil court?
- A. Duly served summons by the plaintiff.
  - B. Any person whose interests are affected by the appeal court.
  - ☒ C. Discovery of additional evidence.
  - D. Procedural regularities.
  - E. The previous decision had arithmetic error.
6. Which one of the following is true about the execution of decree by the transferee court?
- A. Transferee court can alter, vary or add to the terms of the decree. ✗
  - B. The transferee court cannot resolve the ambiguity. ✗
  - ☒ C. The transferee court can execute it as it is decreed by the transferor court. ✓
  - D. Transferee court will not have the same power with the transferor. ✗
  - E. Transferee court can retransfer the decree for execution to another court. ✗
7. Among the following grounds, which one is **incorrect** about the temporary injunction ordered by the court?
- A. The property in dispute is in danger of being wasted by a party to the suit.
  - B. The property in dispute is in danger of being wrongfully sold to third party.
  - C. The defendant threatens to remove his property with a view to deceive his creditors.
  - D. A temporary injunction is issued to prevent certain action from taking place that would prejudice the other party to the suit.
  - ☒ E. A suit to restrain the breach of a contract of act, the defendant is threatening to breach the contract

8. In which of the following situation can the court adjudicate without trial?
- A. When there is admission by one of the parties of the case.
  - B. When there is question of law.
  - ☒ C. When there is no factual dispute.
  - D. When witnesses are not required to testify.
  - E. When the documentary evidence can prove the allegation sufficiently.
9. Among the following, which property or income is exempted from attachment?
- A. Personal belongings used for the hobby.
  - B. Necessary equipment for the travel.
  - C. Pension and alimonies.
  - D. Jewellery received from parents.
  - E. One-third of the salary.
10. In civil cases, the interests of justice should be determined by considering one of the following grounds:
- A. The complexity and vagueness of the case for the community.
  - B. The ability of the party to be adequately represented by the lawyers.
  - ☒ C. The rights that are affected by the defendant,
  - D. The impact of the outcome of the case on the wider community.
  - ☒ E. The number of parties and the amount of money involved in the claim.
11. Which one of the following statements is true about investigation of crime?
- A. It is a search for applicable rule for crime committed.
  - ☒ B. It cannot be undertaken by other authority except the police.
  - C. Arrest of suspect is not allowed during investigation stage.
  - ☒ D. It involves examination of witnesses.
  - E. Search of premises of suspect is not allowed at investigation stage.

12. One of the following is a correct statement about search and seizure under Ethiopian Criminal Procedure Code:
- A. Search against arrested person can be conducted by the opposite sex.
  - ☒ B. Purpose of search is to obtain evidence for the case under investigation.
  - C. Courts may not order search to be conducted at night time.
  - D. There is no possibility that search can be conducted without warrant.
  - E. Physical examination of suspect is not part of search.
13. Restriction of liberty of a suspect may **not** amount to arbitrary arrest on one of the following grounds:
- A. when there is no evidence indicating the suspect has committed crime.
  - B. when a person arrested for flagrant offence is prosecutable up on complaint on-scene.
  - ☒ C. when a person fails to appear before police after duly summoned for investigation.
  - D. when arrest is made without establishing the identity of suspect.
  - E. when the police are required to get arrest warrant before effecting arrest and failed to comply.
14. One of the following crimes does not fall under criminal jurisdiction of federal courts:
- A. Air plane hijacking. ✓
  - B. Trafficking of dangerous drugs. ✓
  - C. Crime relating to inter-ethnic conflict. ✓
  - D. Crime against currencies. ✓
  - ☒ E. Petty offences legislated by regional states.

15. Bail is **not** allowed as per the Ethiopian criminal procedure law under one of the following scenarios:
- A. Where a suspect is charged for grave wilful injury.
  - ☒ B. Where a suspect is being investigated for negligent homicide.
  - C. Where a suspect is being investigated for crime of intimidation.
  - D. Where a suspect is charged for aggravated theft.
  - E. Where suspect is charged for incest.
16. Upon reception of police investigation report, the public prosecutor may take one of the following actions under Ethiopian criminal procedure law:
- A. Direct the police to institute charge within 15 days.
  - B. May seek instruction from competent court to institute a charge.
  - C. May close the case to avoid public anger.
  - ☒ D. May refuse to institute the charge for lawful reasons.
  - E. May institute charge within 1 month.
17. One of the following is a correct description about criminal charge in general:
- A. Criminal Charge can be communicated orally to the defendant.
  - B. Criminal charge is not an indication of due process.
  - C. Several persons may be charged together only when the prosecutor wishes so.
  - D. Criminal charge can be brought against unidentified suspect.
  - ☒ E. Criminal charge must be prepared in writing.
18. One of the following is true about appeal under the Ethiopian Criminal Procedure Code:
- A. Public prosecutor cannot appeal for inadequacy of sentence.
  - B. Interlocutory appeal is possible for refusing adjournment.
  - C. Appeal can be taken from a ruling on preliminary objection.
  - ☒ D. Person who pleaded guilty cannot appeal against his conviction.
  - E. Defendant can appeal against his acquittal.

19. Change of Venue in criminal proceeding may be allowed on one of the following grounds:
- A. When the judge is related to a party by consanguinity or affinity.
  - B. When the defendant does not understand the language of court.
  - C. When change of venue is more convenient to one of the parties.
  - D. One the defendants has personal animosity with the presiding judge.
  - ☒ E. Where fair trial and impartial trial cannot be held in subordinate court.
20. Which one of the following is a correct ground for preliminary objection in a criminal case?
- ☒ A. Previous acquittal for related case.
  - B. Period of limitation.
  - C. Civil case is pending on the same matter in another court.
  - D. Required permission is obtained by the prosecutor to institute charge.
  - E. Where one criminal charge contains two counts of crime.
21. Which statement is correct about the nature of Ethiopian Law of Evidence?
- ☒ A. It defines rights, duties and privileges.
  - ☒ B. It is incorporated under parts of procedural laws suitably. x
  - C. It establishes effective system of adjudication of cases before courts. x
  - D. It may not share some common purposes with procedural laws. x
  - E. Rules of evidence are found in an independent code. x

22. Which approach clearly describes rules of evidence in a common law legal system?
- A. Rules of evidence are sparsely distributed in substantive and procedural laws.
  - B. Parties are considered as competent witness in their own cases. ✓
  - C. The greatest weight and importance is attached to documentary evidence. †
  - D. The system employs the inquisitorial system of evidence gathering. †
  - E. Judges play active role in examining witnesses. †
23. Which standard of proof is the highest level of proof?
- A. Beyond doubt standard
  - B. Balance of probabilities
  - C. Clear and convincing
  - ~~D.~~ Beyond reasonable doubt
  - ~~E.~~ preponderance of evidence
24. Which statement is correct about circumstantial evidence?
- A. It may constitute produced documents which judges interpret.
  - B. Isolation of circumstances may lead to wrong inference.
  - ~~C.~~ No generalizations are drawn from commonly held assumptions.
  - D. It may prove the existence of alleged facts directly.
  - E. Hearsay is categorized under circumstantial evidence.
25. Which one of the following is **correct** under Ethiopian Evidence law?
- A. In civil cases, courts cannot reject irrelevant evidence at any stage. ✕
  - B. To be admissible, an item of evidence shouldn't be relevant. ✕
  - C. Relevant evidence may not be excluded for whatever reason. ✕
  - D. Some irrelevant evidence is admissible as a rule. ✕
  - ~~E.~~ Evidence rules are scattered here and there in our laws. ✓
26. Which statement is valid about degree of proof in general?
- A. Clear and convincing evidence is the lowest degree of proof. ✕
  - ~~B.~~ The degree of proof in civil and criminal case varies. ✓
  - C. Reasonable doubt standard is a burden imposed upon prosecution. ✕
  - D. Balance of probabilities is the medium degree of proof. ✕
  - E. Beyond reasonable doubt standard is the most lenient degree of proof. ✕

27. Which one is irrelevant evidence under Ethiopian evidence rule?
- ☒ A. Motive.
  - B. Subsequent occurrence to a fact in issue.
  - C. Conviction judgment of criminal court on civil matters.
  - D. Disclosed bad character after conviction.
  - E. Character evidence in civil case.
28. Which one of the following statements is valid?
- A. A fact which Minors didn't deny is deemed to be admitted in civil case. ✗
  - B. In civil cases, courts need no further proof where judicial admission is made. ✗
  - ☒ C. Evasive denial made to allegations of damages is considered to be admitted. ✓
  - D. In criminal cases, the effect of judicial admission is destructive. ✗
  - E. Admission should be specific necessarily.
29. Among the given alternatives, which statement is correct about burden of proof?
- A. Evidentiary burden may not shift in civil cases.
  - B. Legal burden may shift in civil and criminal cases.
  - C. In criminal cases, burden of proof may not shift to the accused in certain scenarios.
  - D. The principle of presumption of innocence imposes burden of proof.
  - E. Parties to civil case are required to prove certainty of their assertions.
30. Choose the correct statement about examination of witnesses.
- A. Leading question is allowed at each stage of examinations.
  - B. Courts may not allow leading question when requested to refresh memories.
  - C. During cross examinations, witnesses of the other side may be discredited.
  - D. Re-examination is confined to issues covered in examination in chief.
  - E. Courts have no role in examination of witnesses.

## SECTION II: MATCHING (10 marks)

MATCH EACH ITEM UNDER COLUMN "A" WITH ITS BEST CORRESPONDING ITEM UNDER COLUMN "B".

### Column A

1. Case for Prosecution
2. Inquisitorial
- 3 Adversarial
4. No Case Motion
5. Void-for-vagueness doctrine
6. Habeas corpus
7. Fundamental error of law
8. Arrest without warrant
9. Interrogation
10. Confession

### Column B

- A. Remedy available to a person who is arrested illegally
- B. Prosecutor has proven its case
- C. Prosecutor couldn't prove its case
- D. Courts are passive
- E. Courts are active
- F. Voluntary plea of guilty
- G. Questioning and answer
- H. Wrong interpretation or application of law
- I. Flagrant offence
- J. Substantive Due Process
- K. Self-incrimination
- L. Factual error



### SECTION III: SHORT ANSWERS (10 MARKS)

GIVE A SHORT ANSWER TO THE FOLLOWING QUESTIONS.

1. In both civil and criminal proceedings, parties to the respective proceedings are considered to be competent witness in their own case under Ethiopian criminal and civil rules of evidence. Do you agree? Why/Why not? (3 marks)
2. "The effect of judicial admission is destructive in civil case". Assess the validity of this statement. (3 marks)
3. List those privileges designed to promote certain kinds of relationships and confidential communication. (4 marks)

### SECTION IV: ESSAY TYPE QUESTIONS (20 marks)

1. Explain the difference between *Default Proceeding* and *Ex-parte Proceeding*. (10 marks)
2. Explain the factors that determine whether a certain case falls within the jurisdiction of the federal or regional courts. (10 marks)

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## SECTION V: HYPOTHETICAL CASE PROBLEMS (30 MARKS)

READ THE FOLLOWING TWO HYPOTHETICAL CASES AND ANSWER THE QUESTIONS THAT FOLLOW. SUPPORT YOUR ANALYSIS WITH THE RELEVANT LAWS WHERE NECESSARY

### Hypothetical Case 1 (20 marks)

G and H live and are domiciled in regional state 'A'. They were very close and in love for 8 years after which they decided to conclude marriage. While exploring the formal requirements of marriage, the couple realized that the region they live in has recently enacted a law that requires all future spouses to be free from ZIKA-22 virus before concluding marriage. The state official underlined that ZIKA-22 a pandemic caused by a virus can be transmitted by sexual intercourse further noted that the virus has intergenerational effect.

Nevertheless, G and H refused to have ZIKA-22 virus test. They were also impatient of postponing their marriage. They concluded their marriage in regional state B where ZIKA-22 virus test is not a requirement. A week later, they came back to their original residence in regional state A. Recently, however, the spouses are accusing each other of infidelity. Consequently, Mr G has instituted a case before the Court of regional state 'A' claiming that their marriage is void as per region's family law. His claim is mainly grounded on non-fulfillment of validity requirement of marriage. To the contrary, Ms. H defended that the marriage is validly concluded pursuant to the family law of regional state 'B'. She argued that the case has to be adjudicated according to the family law of regional state of 'B'.

1. Assume that you represent Mr. G, what would be your advice? (10 marks)
2. What are the possible points of legal advice that can be given to Ms. H by her lawyer? (10 marks)

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### **Hypothetical Case 2 (10 marks)**

Abebe is a judgment creditor against Kebede for the indemnity payment of 500,000.00 (Five Hundred Thousand Birr). The decision was made by Bahir Dar First Instance Court. Abebe as a judgment creditor was applying for attachment and sale of Kebede's house No.002 located at Bahir Dar in 2013 E.C. Although Abebe requested the sale of the said house, it was proved that the house was sold to W/ro Almaz before the judgment in 1997 EC. W/ro Almaz has documentary evidence indicating the existence of a sale contract between her and Kebede which was registered at notary. In addition, she had her name registered in the municipality of the town after Kebede's name was struck out.

#### **Questions:**

1. As a legal advisor, W/ro Almaz consulted you for an advice. What will be your advice? (5%)
2. Assume you are a judge before which the case is brought, what would be your judgment? (5%)

**EDUCATIONAL ASSESSMENT AND EXAMINATIONS SERVICE (EAES)**

**NATIONAL EXIT EXAMINATION FOR  
LL.B PROGRAM STUDENTS OF ETHIOPIAN LAW SCHOOLS  
ACADEMIC YEAR 2021/2022**

**JULY 1, 2022**

**TIME ALLOWED: 2:45 HRS**

**PART IV: MISCELLANEOUS LAW COURSES**

**GENERAL INSTRUCTIONS**

1. IT IS A CLOSED BOOK EXAMINATION.
2. WRITE YOUR EXAMINEE CODE NUMBER ON EVERY PAGE OF THE ANSWER SHEET.
3. THE EXAM HAS FIVE SECTIONS. ATTEMPT ALL QUESTIONS ON THE BASES OF SPECIFIC INSTRUCTIONS INDICATES IN EACH SECTIONS.
4. SUPPORT YOUR ARGUMENTS WITH PERTINENTS LEGAL PROVISIONS WHENEVER APPROPRIATE.
5. YOU MAY ASSUME FACTS WHERE NECESSARY.
6. WRITE YOUR ANSWER (S) ON THE ANSWER SHEET PROVIDED.
7. DO NOT BRING YOUR MOBILE PHONE IN TO THE EXAM HALL.
8. PAY PROPER ATTENTION TO INSTRUCTIONS IN EACH PART OF THE EXAM.

**DO NOT TURN THIS PAGE UNTIL YOU ARE ALLOWED TO DO SO.**

## SECTION I. MULTIPLE-CHOICE QUESTIONS (25 marks)

Choose the best answer from the given choices and write the letter of your choice on the answer sheet provided.

1. Whenever there is contradiction among various labor related laws, one of the following has an overriding effect:
  - A. Contract of employment concluded between a worker and an employer.
  - B. The FDRE Constitution and ILO Conventions and Recommendations.
  - C. The Labor Proclamation No.1156/2019.
  - D. The one that gives more favorable treatment to the worker.
  - E. Collective Agreement.
2. The Civil Service Proclamation No.1064/2017 and the Labor Proclamation No.1156/2019 have similar duration in one of the following.
  - A. Maternity leave.
  - B. Maximum working Hours.
  - C. Annual Leave.
  - D. Sick Leave.
  - E. Paternity leave.
3. Which of the following statement is correct about overtime work under the Labor Proclamation No.1156/2019?
  - A. All work done on weekly rest day and on public holiday is regarded as overtime work.
  - B. All work done in excess of 8 hours a day is considered as overtime work.
  - C. Overtime work is in principle allowed.
  - D. When the exceptional situations indicated under the law are fulfilled some workers have protection against overtime work.
  - E. The rate of overtime payment is only dependent upon the time during which the work is done.

4. Which of the following leave is recognized under the Ethiopian Labor Proclamation No.1156/2019, but **not** under the Civil Service Proclamation No.1064/2017?
- A. Paternity Leave
  - B. Maternity Leave
  - C. Union Leave
  - D. Annual Leave
  - E. Sick Leave
5. One of the following assertions is incorrect.
- A. Naturalists (followers of natural law school) blend law and morality. ✓
  - B. Legal realists give more emphasis to statutes than to the judge's beliefs.
  - C. Legal positivists put the sovereign at the center of the legal system. ✓
  - D. Legal realists put the judge at the center of the legal system.
  - E. Sociologists are concerned with the <sup>historical</sup> nature and origin of law than with its actual functions and end results.
6. Which one of the following modern law or legal theory was **not** derived mainly from Stoic philosophy?
- A. The conception of a universal law for all mankind under which all men are equal.
  - B. The idea of a method of deriving universal principles of law from the observation of the laws of different people.
  - C. Principle of Private Law.
  - D. The conception of a law binding upon all states. ✓
  - E. Principle of International law. ✓
7. Which one of the following is **not** the feature of sociological school of jurisprudence?
- A. Concerned less with the nature and origin of law. ✓
  - B. Seeks to view law within a broad social context. ✓
  - C. Concerned with the actual effects of the law upon the attitudes of a particular society. ✓
  - D. ✓ Concerned with actual enactment of legislation by the authority.
  - E. ✓ Concerned with practical improvement of the legal system.

8. Article 40 (3) of FDRE Constitution forbids the sale of land stating that "...Land is a common property of nations, nationalities and peoples of Ethiopia and shall not be subject to sale or other means of exchange." Nevertheless, Mr. A has observed that people in Ethiopia are indeed selling land. Based on this observation, he has concluded that informal land tenure rules are more forceful than that part of the FDRE Constitution which outlaws land sale. Under which school of jurisprudence might Mr. A's conclusion fall?
- A. Sociologist
  - B. Positivist
  - C. Naturalist
  - D. Realist
  - E. Historical
9. The roles of women in their family have not been considered since long. The very reason behind this non-consideration remains \_\_\_\_\_.
- A. Due to legal gap
  - B. Due to policy gap
  - C. Due to unnoticed gender gap
  - D. Due to institutional gap
  - E. Due to noticed gender gap
10. Which one of the following is incorrect about patriarchy?
- A. It is a female domination and male's acceptance.
  - B. It is the supremacy of the father.
  - C. It is a male dominance.
  - D. It is a practice in which men dominate women.
  - E. Most of institutions are patriarchal.

11. The mother in most cultures of the society is usually in charge of breast feeding of the baby; whereas men lack a natural basis meant for family orientation since they do not reproduce. Which one of the following best expresses this scenario?
- A. Norm versus culture
  - B. Culture versus tradition
  - C. Culture versus religion
  - D. Culture versus nature
  - E. Dominance versus nature
12. Men were exposed to the outside world due to the kind of work they took up; whereas women traditionally have been doing household works which is termed as \_\_\_\_\_.
- A. Sex segregation based on job
  - B. Job segregation based on sex
  - C. Male segregation based on sex
  - D. Occupational segregation based on gender
  - E. Gender segregation based on sex
13. Which one of the following is true about education in its universal spectrum?
- A. It must pick the best and brightest students.
  - B. Schooling system should be filtering process.
  - C. It should be privilege for some for schooling facilities.
  - D. It is a fundamental right for all.
  - E. It would be a threat if accessible for all.
14. Which one of the following has neither conceptual nor practical importance for the promotion of gender equality in Ethiopia?
- A. Strategy on agricultural led industrialization
  - B. Traditional practices
  - C. National health policy
  - D. Natural resources and environmental policy
  - E. The development of social welfare policy

15. Women have the main responsibility of child rearing while men do work outside of the house. This social division of labor brought about \_\_\_\_\_.
- A. Economic inequality
  - B. Social inequality
  - C. Political inequality
  - D. Legal inequality
  - E. Access inequality
16. Which one of the following is not one of the national actors in gender equality in Ethiopia?
- A. The House of Federation
  - B. The House of Peoples' Representatives
  - C. Research Centers in Ethiopia
  - D. Committee of CEDAW
  - E. Regional State Councils
17. Children come to learn about norms, expectations, and different roles in the group and their gender identity through the process of \_\_\_\_\_.
- A. Assimilation
  - B. Adoption
  - C. Socialization
  - D. Social policy
  - E. Adulteration
18. Which one of the following is not true about legal ethics?
- A. The ultimate aim of legal ethics is to preserve the honor and dignity of the legal profession.
  - B. The attainment of honor and dignity of legal profession results in impudence for court and law.
  - C. To escape the destruction of society, legal ethics requires the legal professional to be ethical.
  - D. Ethical requirement of the legal profession signifies the public interest of the state and individual citizens.
  - E. It requires the legal professionals to work with civility to enhance the honor and dignity of the law profession.

19. One of the following is not an ethical requirement of the relationship between an advocate and a client.
- A. An advocate must be faithful to the requirements of law and his/her/ profession.
  - B. An advocate has professional discretion in determining the means by which a matter should be pursued.
  - C. An advocate discharges his/her responsibility towards his/her client in a reasonably well manner.
  - D. Impartiality is essential to the proper discharge of an advocae's professional service.
  - E. An advocate must act in accordance with the rules of the professional conduct, including honor and dignity.
20. One of the following is the major purpose of the Federal Judicial Administration Proclamation No 1233/2021?
- A. To establish a judiciary that upholds the supremacy of a judge that earns and maintains the trust of the people.
  - B. To ensure that courts exercise their judicial functions free of all internal and external influences.
  - C. To establish a legal framework and procedures that ensure transparency, impartiality and public confidence in all aspects of the process.
  - D. To maintain the personal independence of the members of the judiciary while rendering decision on a specific case.
  - E. To promote equality before the law, due process of law and non-violation of human rights.

21. Which one of the following is correct about the relationship between impartiality and independence as one of the basic ethical duties of judges in performing judicial activities?
- A. Impartiality and independence are detachable and dissimilar ethical duties of judges.
  - B. Impartiality is the necessary precondition to independence and is a prerequisite for attaining the later.
  - C. Independence cannot exist without impartiality but impartiality can exist without independence.
  - D. The independence of the judiciary can only be attained through objective impartiality.
  - E. One of the manifestations of judicial independence is the function of governing judicial selection and compensation.
22. Impartiality of a judge can best be described, except
- A. It applies not only to the decision itself but also to the process by which the decision is made.
  - B. Judges must avoid any action which in the mind of reasonable person would give rise to a reasonable suspicion.
  - C. Judges cannot discuss the matter let alone with parties and their advocates even with their close friends and relatives.
  - D. Judges should build up ex parte communication with parties or their representatives.
  - E. The purpose of ethical requirements of impartiality is to avoid such perception in the members of the courts.
23. Which one of the following is correct about moral issues and moral dilemmas?
- A. Moral issues are issues that raise questions of value about rights, character and welfare of a person.
  - B. Moral issues do not involve value dilemmas (moral dilemmas).
  - C. Moral dilemmas do not involve situations in which one cannot escape deciding.
  - D. Moral dilemmas on questions of value do not directly compare with questions of fact.
  - E. Moral issues do not involve important value judgment while answering questions of fact.

24. The accountability of judges may not include the following.
- A. Judges are required to render decision in public.
  - B. Decision of the lower court judges is reviewed by an appellate court.
  - C. Judges are appointed by the legislature which is accountable to the people.
  - D. The nomination of the judge should consider his skill, personal quality and the like.
  - E. The judicial function of a judge must be secure from internal and external intervention.
25. One of the following is an obligation of an advocate pursuant to the Federal Advocacy Service Licensing and Administration Proclamation No 1249/2021?
- A. Not to terminate the advocacy service contract without good cause.
  - B. Can perform advocacy service using intermediary.
  - C. To perform his/her advocacy service with honesty and being loyal to justice.
  - D. Short term consultancy service contract must be made in a written form.
  - E. To have an office where he/she provides the advocacy service.

SECTION II. MATCHING (10 marks)

SELECT A TERM/PHRASE FROM COLUMN 'B' THAT BEST MATCH WITH A TERM/PHRASE UNDER COLUMN 'A' AND WRITE THE LETTER OF YOUR CHOICE IN THE ANSWER SHEET.

- | A                                                 | B                                                          |
|---------------------------------------------------|------------------------------------------------------------|
| 1. Sex <b>D</b>                                   | A. Manifest masculinity or femininity                      |
| 2. Gender <b>E</b>                                | B. Exclusion                                               |
| 3. Gender identity <b>F</b>                       | C. Inequality and discrimination                           |
| 4. Gender expression <b>A</b>                     | D. God-given and innate                                    |
| 5. Gender discrimination <b>J</b>                 | E. Social meanings                                         |
| 6. Failure to adopt a gender Perspective <b>B</b> | F. Psychological <u>identification</u> as a man or a woman |
| 7. Manifestation of gender inequality             | G. Economic marginalization and dependence                 |
| 8. Prevalence of gender stereotypes <b>C</b>      | H. <i>De facto</i> equality                                |
| 9. Gender inequality in the family <b>I</b>       | I. Domestic violence against women                         |
| 10. Substantive gender equality <b>L</b>          | J. Valuing male activities                                 |
|                                                   | K. Sex would become irrelevant                             |
|                                                   | L. Level playing field                                     |

### SECTION III. SHORT ANSWER QUESTIONS (15 marks)

PREPARE A SHORT NOTE ON EACH OF THE THREE QUESTIONS PROVIDED BELOW.

1. Formal gender equality approach advocates for the provision of equal opportunities for women, who are allowed to have access to opportunities and are expected to perform according to the same rules and standards as men. Show the drawbacks of such gender equality approach. (5 marks)
2. State restrictions attached to the right of every one to choose and practice the law as a profession under Article 41(2) of the FDRE Constitution. Comment on this statement (5 marks)
3. A public prosecutor shall be independent from any influence, be it an institution or an official of legislative or executive branch, and he/she shall adhere only to the law. Comment on the validity or otherwise of this statement? (5 marks)

### SECTION IV. ESSAY-TYPE QUESTIONS (25 marks)

ANSWER THE FOLLOWING TWO QUESTIONS. YOUR ANSWERS ARE EXPECTED TO BE ANALYTIC, CRITICAL AND COMPREHENSIVE.

1. Under Labor Proclamation No.1156/2019 "No Work No Wage" is the governing principle of idle time. Discuss at least three exceptional situations where a worker is entitled to wage payment without rendering service to his/her employer. (12.5 marks)
2. Write an essay describing factors that caused the revival of natural law. (12.5 marks)

## SECTION V HYPOTHETICAL CASE QUESTIONS (25 marks)

ANSWER THE FOLLOWING THREE HYPOTHETICAL CASE. YOUR ANSWER SHOULD BE BASED ON REASON AND AUTHORITY.

1. Jumanji Religion is one of the religious institutions lawfully recognized and registered in Ethiopia. One of the religion centers is located in Dire Dawa City. During its initial years of establishment, the main source of income of this religious institution mainly came from money collected voluntarily as spiritual gifts from followers of the religion. As a result, in year 2022 G.C. it was decided to make this religious institution financially self-sufficient by enabling it to engage in income generating activity.

Diverse individuals have been hired in this religious institution to render various services of spiritual, administrative and secular nature in return for wages. From among those workers, Miss. Hewan Ayele is hired as a shopkeeper (seller) in the mini market shop established by the religious institution with a monthly salary of Birr 2,000. Another person worth mentioning is Mr. Kebro Kasse who has been serving the religious institution since January 1, 2018 G.C. both as priest and Security Guard for which the religious institution has been paying Birr 2,000 per month for spiritual service as a priest and Birr 2000 per month for guarding service. Unfortunately, on January 1, 2022, various property of the religious institution was stolen. It has been reported that the stolen property was valued approximately 50,000 Birr. The religious institution started its own administrative investigation to find out the person responsible for the damage. The investigation culminated on February 5, 2022 by concluding negligence of both Miss. Hewan Ayele and Mr. Kebro Kasse. On February 26, 2022, when Miss. Hewan Ayele and Mr. Kebro Kasse reported to office as usual, they both were informed orally by the head of the religious institution that they could no longer work in the institution from February 30, 2022 on ground of contribution in the stolen property. Both Miss. Hewan Ayele and Mr. Kebro Kasse have approached you for legal advice.